

TEXAS ADMINISTRATIVE CODE: As in effect on 5/11/2026.

TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.28. Substantial Equivalence and Provisional Licensure.

- (a) To be granted a license through substantial equivalence, an applicant must:
- (1) submit a completed application in the manner prescribed by the department;
 - (2) furnish a certified transcript of hours from the state board, territory, or foreign country from which the applicant is applying;
 - (3) provide one of the following:
 - (A) if an applicant is from another state of the United States, provide documentation that licensure in another state was obtained by standards substantially equivalent to those of Texas; or
 - (B) if an applicant is from a territory or foreign country, provide documents verified by the department or a certified credentialing agency confirming that licensure in the territory or foreign country was obtained by standards substantially equivalent to those of Texas;
 - (4) furnish an active and valid license or certificate to indicate that the applicant is licensed in good standing in another jurisdiction or foreign country;
 - (5) pay the substantial equivalence fee and applicable license application fee required under §83.80; and
 - (6) be at least 17 years of age.
- (b) A person who cannot provide documentation of standards equivalent to those in Texas must pass the applicable written and practical examination for the license.
- (c) A person issued a license through substantial equivalence may perform those acts of barbering and cosmetology authorized by the license.

(d) The department may waive any license requirement for an applicant who holds a license from another state or country that has license requirements substantially equivalent to those of Texas.

(e) The department may issue a provisional license to applicants currently licensed in another jurisdiction who file an application for a Texas license by substantial equivalence.

(f) To be eligible for a provisional license, an applicant must:

(1) file a completed application, in the manner prescribed by the department, for a Texas barbering or cosmetology license by substantial equivalence;

(2) provide information sufficient for the department to verify the applicant's licensure in good standing for at least two years in the license type for which the person seeks the license; and

(3) have been licensed in a jurisdiction or foreign country in which the requirements for obtaining the same license are substantially equivalent to the requirements under the Act, including passage of a national examination or other examination recognized by the department relating to the practice of the profession.

(g) A person issued a provisional license may perform those acts of barbering or cosmetology authorized by the provisional license pending the department's approval or denial of an applicant's license by substantial equivalence.

(h) A provisional license is valid until the date the department approves or denies the application for licensure by substantial equivalence. The department must approve or deny a provisional license holder's application for a license by substantial equivalence not later than the 180th day after the date the provisional license is issued. The department may extend the 180-day period if the results of an examination have not been received by the department before the end of that period.

(i) The department will issue a license by substantial equivalence to the provisional license holder if the person is eligible to hold a license under the Act.

(j) An applicant for licensure by substantial equivalence is eligible for a provisional license only once. A person who is denied licensure by substantial equivalence and subsequently reapplies for licensure by substantial equivalence is not eligible to obtain additional provisional licenses to practice barbering or cosmetology in Texas.

(k) If an applicant for a class A barber or operator license has not completed the hours required under this chapter, documented work experience, performed in the jurisdiction outside of Texas in which the person is licensed, may be substituted at

the rate of 25 hours per month worked, up to a maximum of 300 hours, or the applicant must complete the balance of hours required in an approved Texas school.